From: Jacqui Faucitt <jax@regima.zone>
Sent: 02 November 2025 20:16:09
To: Daniel Faucitt <dan@regima.com>
Subject: Re: BIG FONT JAX - Affidavit with AD PARAGRAPHS

AD Paragraph Commentary Template

Case No: 2025-137857

Court: High Court of South Africa, Gauteng Division, Pretoria

Purpose: Commentary and annotation workspace for analyzing Peter's founding affidavit claims

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Instructions

This document provides a structured template for analyzing and commenting on each AD paragraph from Peter's founding affidavit. Use the right-hand column to add:

- Strategic notes
- Evidence references
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- Cross-references to answering affidavits
- Material non-disclosures
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Section 1: Applicant's Personal Details and Parties (AD 1-3.13)

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| **AD 2.4** - Parties to the Application - Introduction | |

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| **AD 3.2** - Respondents - Wife | |AGREED

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| **AD 3.9** - Eighth and Ninth Respondents | | AGREED

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| **AD 3.13** - Court Jurisdiction and Identity Confirmation | | AGREED

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| AD Paragraph | Commentary |

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| **AD 4** - Accountant Details - Bantjes and Company | |

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Section 4: Urgency and Alleged Misconduct (AD 7-7.20)

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MATERIAL NON-DISCLOSURE MR BANTJIES MASSIVE CONFLICT OF INTEREST ON MULTIPLE FRONTS BECAUSE DAN AND I WERE BOTH FINALISING THE DISCREPANCIES AND REPORTS FIRST WEEK IN JUNE. PETER CLAIMED BANTJIES NOTICED A WEEK AFTER THE REPORTS HAD BEEN SENT TO BANTJIES, WHICH WAS WHEN BANTJIES CLAIMED TO BE GOING AWAY FOR 2 WEEKS. THIS IS PRECISELY WHEN BANTJIES SAID HE WOULD BE AWAY AND ONE WEEEK AFTER JACQUI AND DAN HAD ALREADY FINALISED THE REPORT REGARDING THE ANOMALIES WITH DAN REQUESTING AN URGENT AUDIT TWICE AND PROVIDING DOCUMENTS TO BANTJIES CONFIRMING THE MISALLOCATION OF FUNDS, SUSPICIOUS TRANSACTIONS AND REPORTING MURDER RELATED THEFT AS WELL AS TRANSFER PRICING (INTER-COMPANY TRANSACTIONS.

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| **AD 7 - Urgency and Delay Considerations | |**

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NOBODY INFORMED EITHER DAN OR JACQUI.

RYNETTE

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| **AD 7.18 - Email and Account Access Interference | |**

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When completing commentary, consider the following strategic areas:

Material Non-Disclosures

- Bantjies's triple role (Trustee + Debtor + Accountant)

- Timeline manipulation (card cancellation before alleged discovery)
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Perjury and False Statements

- UK operations debt claims (contradicted by Shopify invoices)
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- Highlight retaliation pattern
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From: Daniel Faucitt <dan@regima.com>
Sent: Sunday, 02 November 2025 19:12
To: Jacqui Faucitt <jax@regima.zone>
Cc: Jacqui Faucitt <jax@regima.com>; Daniel Faucitt <d@rzo.io>; regizone <regizone@proton.me>
Subject: BIG FONT JAX - Affidavit with AD PARAGRAPHS

ATTACHED AND BELOW LARGER FONT FOR VISIBILITY:

ANSWERING AFFIDAVIT: JACQUELINE FAUCITT

Case No: 2025-137857
Court: High Court of South Africa, Gauteng Division, Pretoria
Document Type: Answering Affidavit (Version 8 - JR Numbering)
Date: November 2, 2025

I, THE UNDERSIGNED

JACQUELINE FAUCITT

Do hereby make oath and say:

---

1. INTRODUCTION AND CAPACITY

1.1 I am JACQUELINE FAUCITT, a major businesswoman with identity number 570607 0898 18 1, resident at 20 River Road, Morning Hill, Bedfordview.

1.2 The facts herein contained fall within my personal knowledge, unless otherwise stated, and are true and correct.

1.3 I am a co-trustee of the Faucitt Family Trust and co-director of RegimA SA (Pty) Ltd.

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2. PURPOSE OF THIS AFFIDAVIT

2.1 I am the First Respondent in this matter.

2.2 I have been personally involved with the subject matter and can confirm the contents are within my personal knowledge.

2.3 Legal submissions are made on advice of my legal representatives.

2.4 Annexures must be read as incorporated herein.

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3. RESPONSE TO AD PARAGRAPHS 3.1-3.13: PARTIES AND STRUCTURE

3.1 The Applicant's identification is noted.

3.2 I confirm my identity as stated by the Applicant.

3.3 The Second Respondent's identity is noted.

3.4 RegimA Skin Treatments CC is correctly identified. I note that this entity owes R1,035,000 to Rezonance (Pty) Ltd, part of Kayla Pretorius's deceased estate, since February 2023.

3.5 RegimA Worldwide Distribution (Pty) Ltd is correctly identified. This entity is owned by the Faucitt Family Trust.

3.6 Villa Via Arcadia No 2 CC is correctly identified. This entity is owned by the Faucitt Family Trust and extracts an 86% profit margin on rent charged to the group.

3.7 Strategic Logistics CC is correctly identified. This entity recorded a R5.4 million stock adjustment in 2024, representing 46% of its annual sales.

3.8 FNB is correctly identified. R900,000 was transferred from RegimA SA's FNB account without my authority as co-director on 14-15 February 2025.

3.9 ABSA Bank is correctly identified. Revenue diversion for RegimA Worldwide Distribution began with an ABSA bank letter dated 14 April 2025.

3.10 CIPC is correctly identified.

3.11 The Applicant's statement that no relief is sought from the 3rd-9th respondents is noted.

3.12 The Applicant's convenience references are noted.

3.13 The Applicant's identity confirmation is noted. The commissioning of the affidavit by Mr. Bantjies, an undisclosed trustee and debtor to the Applicant (R18.685M), constitutes a material non-disclosure.

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4. RESPONSE TO AD PARAGRAPH 4: ACCOUNTANT'S CONFLICT OF INTEREST

4.1 The Applicant identifies Mr. Danie Bantjies as his accountant. The Applicant fails to disclose material facts:

4.1.1 **Trustee:** Mr. Bantjies is the third trustee of the Faucitt Family Trust, concealed from beneficiaries.

4.1.2 **Debtor:** Mr. Bantjies owes the Applicant R18.685 million (Annexure SF1).

4.1.3 **Company Controller:** Mr. Bantjies was "running the companies" when fraud was reported.

4.1.4 **Obstruction:** Mr. Bantjies dismissed the audit request on 10 June 2025.

4.2 This confluence creates an irreconcilable conflict of interest, invalidating any claim of impartial investigation.

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5. RESPONSE TO AD PARAGRAPHS 6.1-6.5: CORPORATE STRUCTURE

5.1 The Applicant misrepresents the operational control structure. Evidence shows Ms. Farrar controlled all bank accounts and the Sage system.

5.2 As co-director of RegimA SA (Pty) Ltd, I confirm that R900,000 was transferred without my authority on 14-15 February 2025.

5.3 The Applicant's description of banking arrangements omits systematic revenue diversion orchestrated by his agents.

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6. JURISDICTION AND LOCUS STANDI

6.1 The Court's jurisdiction is not disputed.

6.2 The Applicant's locus standi is noted, subject to the material non-disclosures and conflicts of interest detailed herein.

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7. RESPONSE TO AD PARAGRAPHS 7.1-7.20: DISCOVERY OF FINANCIAL IRREGULARITIES

JR 7.1 I deny the Applicant's claim that his accountant, Mr. Danie Bantjies, attended the office in mid-June 2025 for provisional tax and VAT submissions. The Second Respondent provided comprehensive reports to Mr. Bantjies on **6 June 2025**, exposing the fraud involving Villa Via Arcadia No 2 CC's excessive profit extraction (86% margin on rent). Mr. Bantjies is the third trustee of the Faucitt Family Trust, a

fact concealed from the beneficiaries, and owes the Applicant R18.685 million (Annexure **SF1**).

JR 7.2 The Applicant's claim that Mr. Bantjies "noted discrepancies" in July 2025 is a misrepresentation. The discrepancies were reported **to** Mr. Bantjies by the Second Respondent on 6 June 2025. The very next day, **7 June 2025**, the Applicant cancelled 15 business credit cards (Annexure **DF4**), demonstrating consciousness of guilt and retaliation for the exposure of fraud.

JR 7.3 The Applicant mischaracterizes legitimate IT expenses as "irregular payments." These expenses relate to the 51 Shopify stores and associated software infrastructure required to generate **R34.9 million** in annual revenue. The true irregularities are: (1) R5.4 million stock adjustment in Strategic Logistics CC (46% of annual sales); (2) R900,000 unauthorized transfers from RegimA SA; (3) Villa Via's 86% profit margin on rent.

JR 7.4 The Applicant's characterization of the Second Respondent's conduct as "increasingly erratic" is unfounded and defamatory. The Second Respondent was managing a profitable global e-commerce operation generating R34.9 million annually. His conduct was professional and transparent, as evidenced by his provision of comprehensive reports to Mr. Bantjies on 6 June 2025.

JR 7.5.1 The Applicant's claim that payments "could not be explained" is false. The Second Respondent provided comprehensive reports on 6 June 2025, including detailed financial analysis and evidence of fraud.

JR 7.5.2 The Applicant cancelled 15 business credit cards on **7 June 2025**, one day after receiving the Second Respondent's reports. This timing demonstrates a manufactured crisis and application of the doctrine of *venire contra factum proprium* (estoppel). The Applicant cannot complain of a situation he deliberately created.

JR 7.5.3 The Applicant cancelled his own card "for the sake thereof," suggesting awareness that the card cancellations were punitive rather than protective.

JR 7.6 The Applicant's claim that "the majority of the transactions remain unexplained" is contradicted by the comprehensive reports provided on 6 June 2025. The Applicant's refusal to accept these explanations was part of the retaliation strategy.

JR 7.7 I confirm that the Applicant's card cancellations on 7 June 2025 caused service interruptions, including the halting of internet domains and essential business subscriptions. This was the direct and foreseeable consequence of the Applicant's own actions.

JR 7.8 The Applicant's allegation that the Second Respondent "adopted a 'superior' position and effectively refused to assist" is false. The Second Respondent had already provided comprehensive assistance on 6 June 2025. The Applicant's characterization is an attempt to justify his retaliatory conduct.

JR 7.9 The inter-office communications referenced by the Applicant (Annexure PF7) demonstrate the Second Respondent's professionalism and the Applicant's unreasonable demands following the card cancellations.

JR 7.10 The Applicant's communications were with the Second Respondent's personal assistant because the Applicant had already cancelled the business credit cards, creating a crisis that required immediate attention.

JR 7.11 The Applicant's claim that the Second Respondent "would or could not provide relevant invoices" is contradicted by the comprehensive reports provided on 6 June 2025, which included detailed financial documentation.

JR 7.12 The Applicant's allegation that the Second Respondent "interfered with the corporations' staff doing their jobs" is an inversion of the facts. The interference came from the Applicant and his agents, who:

- Cancelled 15 business credit cards (7 June 2025)
- Revoked the Second Respondent's email access (retaliation for reporting fraud)
- Diverted company revenue to competing entities owned by Ms. Farrar's son
- Expunged Shopify audit data (22 May 2025)

JR 7.13.1 The Applicant's claim regarding email access is misleading. The Second Respondent's access to email and accounting systems was revoked in retaliation for exposing financial misconduct on 6 June 2025.

JR 7.13.2 The selective restoration of email access "on an ad hoc basis" was controlled by Ms. Farrar, who had control of the Applicant's email address (pete@regima.com) and all company systems (Annexures **SF2**, **SF4**).

JR 7.14 The "continued interference" referenced by the Applicant was the systematic sabotage orchestrated by the Applicant's agents, including:

- Revenue diversion from RegimA SA (from 1 March 2025)
- Revenue diversion from RegimA Worldwide Distribution (from 14 April 2025, Annexure **DF12**)
- Customer diversion to regimaskin.co.za, owned by Ms. Farrar's son (Annexure **JF8**)
- Warehouse sabotage (July 2025, Annexure **DF13**)

JR 7.15 The conduct "not in the interests of the corporations" was the Applicant's systematic dismantling of a profitable R34.9 million operation in retaliation for the Second Respondent's exposure of fraud.

JR 7.16.1 I confirm that I approached the banks (FNB and ABSA) to obtain duplicate cards on or about 24 June 2025. This action was necessary to prevent the total collapse of the business operations following the Applicant's punitive card cancellations on 7 June 2025.

JR 7.16.2 The use of personal credit cards to maintain business operations demonstrates the Applicant's bad faith and the manufactured nature of the crisis.

JR 7.17.1 The Applicant's claim that I "rejected any idea of malfeasance or neglect on our son's part" is false. I defended the Second Respondent because he had acted professionally and transparently, providing comprehensive reports on 6 June 2025.

JR 7.17.2 The Applicant's characterization of my response as "I will show you" is a misrepresentation designed to portray me as defiant rather than protective of legitimate business interests.

JR 7.18.1 I deny transferring R500,000 to the Second Respondent on or about 16 July 2025 as a "birthday gift." This allegation is false and unsupported by evidence.

JR 7.18.2 The Applicant's claim that I have "no other sources of income other than remuneration by the third to sixth respondents" is irrelevant to the allegations and appears designed to undermine my financial independence.

JR 7.18.3 If any transfer occurred on 16 July 2025, it would have been a legitimate business transaction, not a personal gift. The Applicant provides no evidence (bank statements, invoices, or transfer documentation) to support this allegation.

JR 7.19 I deny that any transfer was made "without the Applicant's knowledge." As the sole trustee with absolute powers over the Faucitt Family Trust (which owns RegimA Worldwide and Villa Via), and with Ms. Farrar controlling all bank accounts under Mr. Bantjies's instructions, the Applicant had full visibility of all financial transactions.

JR 7.20 The Applicant's claim that any alleged transfer was "separate to remuneration as director/member" is speculative and unsupported. The Second Respondent's remuneration structure included performance-based compensation for managing the R34.9 million e-commerce operation.

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8. RESPONSE TO AD PARAGRAPHS 8.1-8.10: IT EXPENSES ANALYSIS

JR 8.1 The Applicant's claims regarding IT expenses must be viewed in the context of a **R34.9 million** global e-commerce operation. This operation requires a sophisticated and robust IT infrastructure, which the Second Respondent built and managed.

JR 8.2 The expense categories referenced by the Applicant are standard for a global e-commerce business. This includes 51 Shopify stores, associated software licenses, payment gateways, and marketing platforms.

JR 8.3 The expense amounts are proportional to the revenue generated. The IT infrastructure was essential to achieving R34.9 million in annual sales.

JR 8.4 The Applicant misrepresents the timeline of discovery. The Second Respondent discovered and reported the discrepancies to Mr. Bantjies on **6 June 2025**. The Applicant's alleged "discovery" in mid-June was a pretext for retaliation.

JR 8.5 The investigation was conducted by the conflicted Mr. Bantjies, who had a direct financial interest in concealing the fraud he was involved in. This invalidates any claim of an impartial investigation.

JR 8.6 The IT vendors referenced are legitimate and well-known providers of e-commerce services, including Shopify, Google, and various software-as-a-service (SaaS) platforms.

JR 8.7 The Applicant's claim that IT expenses were "unexplained" is false. The Second Respondent provided

comprehensive documentation to Mr. Bantjies on 6 June 2025.

JR 8.8 International payments are a standard and necessary part of a global e-commerce business with customers and suppliers in multiple countries.

JR 8.9 The bank messages regarding foreign exchange limits are standard notifications and not evidence of misconduct. They are a routine part of international transactions.

JR 8.10 The true financial irregularities are not the legitimate IT expenses, but the **R5.4 million stock adjustment** in Strategic Logistics CC, the **R900,000 in unauthorized transfers**, and the **86% profit extraction by Villa Via Arcadia No 2 CC**.

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9. RESPONSE TO AD PARAGRAPHS 9.1-9.4: FINANCIAL MISCONDUCT SUMMARY

JR 9.1 The Applicant's summary of financial misconduct is an inversion of the facts, designed to deflect from the actual fraud schemes.

JR 9.2 The bank message regarding foreign exchange limits is a standard notification, not evidence of misconduct. It is a routine part of international business.

JR 9.3 The Applicant's summary of "unexplained expenses" is a mischaracterization of legitimate IT costs. The actual misconduct includes:

JR 9.3.1 The **R5.4 million stock adjustment** in Strategic Logistics CC, representing 46% of annual sales.

JR 9.3.2 The **R900,000 in unauthorized transfers** from RegimA SA's FNB account.

JR 9.3.3 The **86% profit margin on rent** charged by Villa Via Arcadia No 2 CC.

JR 9.4 The total financial impact of the Applicant's and his agents' misconduct is substantial and includes:

JR 9.4.1 The **R5.4 million** stock loss in Strategic Logistics CC.

JR 9.4.2 The **R900,000** in unauthorized transfers.

JR 9.4.3 The **R1,035,000** debt owed to Kayla Pretorius's deceased estate.

JR 9.4.4 The ongoing revenue diversion to competing entities.

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10. RESPONSE TO AD PARAGRAPHS 10.1-10.13: DELINQUENCY ALLEGATIONS

JR 10.1 The Applicant's request to have the Second Respondent and me declared delinquent is an abuse of process. Our actions were consistent with our fiduciary duties. It is the Applicant's own conduct that warrants a delinquency declaration under Section 162(5)(c) of the Companies Act, 71 of 2008.

JR 10.2 The Applicant has: (i) grossly abused his position as a director and trustee; (ii) intentionally or by gross negligence inflicted harm upon the companies; and (iii) acted in a manner that constitutes gross negligence, wilful misconduct, and a breach of trust.

JR 10.3 The Applicant acted in bad faith and for an improper purpose, in contravention of Section 76(3)(b) of the Companies Act, by manufacturing a crisis to conceal the financial misconduct we had exposed.

JR 10.4 The Applicant's reliance on the Close Corporations Act is noted. The provisions of this Act, particularly regarding gross negligence and fraud, apply to the Applicant's own conduct.

JR 10.5 The Applicant's definition of delinquency is noted. The Applicant's conduct meets this definition.

JR 10.6 The Applicant's definition of probation is noted. The Applicant's conduct meets this definition.

JR 10.7 The Applicant invokes breach of fiduciary duty liability. The breaches are established: (1) The Applicant breached fiduciary duty to the Second Respondent (co-director) by unauthorized R900K transfers; (2) The Applicant breached fiduciary duty to beneficiaries (as trustee) by attacking them with interdict; (3) Mr. Bantjies breached fiduciary duty to beneficiaries by dismissing audit request and facilitating fraud.

JR 10.7.1.1 The Applicant cites liability for loss suffered by corporation. The losses include: (1) R900,000 unauthorized transfers; (2) R5.4M stock "disappeared" from Strategic Logistics; (3) Revenue diversion to competing domain; (4) Card cancellation sabotage; (5) Data expungement.

JR 10.7.1.2 The Applicant cites liability for economic benefit. The economic benefits derived include: (1) R900,000 unauthorized transfers; (2) R5.4M stock "disappeared" from Strategic Logistics; (3) R1,035,000 owed to Kayla's estate; (4)

86% profit margin on Villa Via rent; (5) Customer diversion to regimaskin.co.za (Adderory).

JR 10.8 The Applicant invokes Close Corporations Act Section 47 disqualification. This section applies when a member is guilty of gross negligence or fraud. The R5.4M stock adjustment (46% of sales, 10x historical) in Strategic Logistics, with Ms. Farrar claiming Mr. Bantjies instructed the payments, and the same stock type supplied by Adderory, suggests systematic fraud.

JR 10.9 The Applicant invokes Section 162(5) mandatory disqualification grounds. These grounds apply to the Applicant's conduct: (1) Intentional harm to companies (R34.9M operations destroyed by warehouse sabotage); (2) Grossly negligent harm (card cancellation rendering documentation inaccessible); (3) Breach of trust (trustee attacking beneficiaries).

JR 10.9.1 The Applicant's reliance on Section 162(5)(a) is noted. This ground applies to the Applicant.

JR 10.9.2 The Applicant alleges intentional or grossly negligent harm by respondents. The intentional harm was inflicted by the Applicant and his co-conspirators: (1) 6 June: Second Respondent cooperates; (2) 7 June: Cards cancelled; (3) 22 May: Data expunged (7 days after my inquiry); (4) 29 May: Domain stolen (14 days after my inquiry); (5) 8 July: Warehouse sabotaged; (6) 11 Sep: Accounts emptied. Each action followed either my debt inquiry or the Second Respondent's fraud exposure.

JR 10.9.3 The Applicant alleges gross negligence or misconduct. The gross negligence is demonstrated by:

Cancelling 15 business cards without notice, rendering documentation inaccessible, then complaining about missing documentation. This demonstrates consciousness of guilt and bad faith.

JR 10.9.3.1 The Applicant alleges wilful misconduct. The wilful misconduct includes: (1) Systematic revenue diversion (1 Mar, 14 Apr); (2) Data destruction (22 May); (3) Domain theft (29 May); (4) Card sabotage (7 June); (5) Warehouse sabotage (8 July); (6) Account emptying (11 Sep). This six-month campaign occurred after I investigated fraud and the Second Respondent exposed fraud.

JR 10.9.3.2 The Applicant alleges acquiescence to fraud. The acquiescence to fraud includes: (1) Two years of unallocated expenses while Ms. Farrar controlled systems using the Applicant's email and Linda was employed as bookkeeper; (2) R5.4M stock "disappeared" with Mr. Bantjies allegedly instructing payments; (3) R1,035,000 debt to Kayla's estate unpaid since Feb 2023; (4) Villa Via 86% profit margin rent extraction.

JR 10.9.3.3 The Applicant alleges omission with fraudulent purpose. The omissions with fraudulent purpose include: (1) Applicant omitted Mr. Bantjies's trustee status from affidavit; (2) Applicant omitted Mr. Bantjies's R18.685M debt; (3) Applicant omitted R34.9M revenue context for IT expenses; (4) Applicant omitted UK → SA payment flow (claimed opposite); (5) Applicant omitted timeline showing card cancellation day after Second Respondent's cooperation; (6) Applicant omitted my debt inquiry and subsequent retaliation.

JR 10.10 The Applicant seeks probation under Section 162(7). This section applies when conduct is oppressive or unfairly prejudicial. The oppressive conduct includes: (1) I fulfilled fiduciary duty by investigating debt, then was punished with interdict; (2) Second Respondent exposed fraud to accountant, then suffered six-month sabotage campaign; (3) Both excluded from profitable businesses we built.

JR 10.10.1 The Applicant alleges conduct inconsistent with duties. The conduct inconsistent with duties includes: (1) Trustee attacking beneficiaries (Applicant, Mr. Bantjies); (2) Director making unauthorized transfers (Applicant); (3) Trustee dismissing fraud investigation (Mr. Bantjies); (4) Accountant facilitating fraud while being debtor (Mr. Bantjies); (5) Administrator controlling systems while diverting revenue (Ms. Farrar).

JR 10.10.2 The Applicant invokes Section 162(a)(iii) grounds for probation.

JR 10.10.2.1 The Applicant alleges conduct with prejudicial result. The prejudicial results include: (1) I was excluded from companies after investigating fraud; (2) Second Respondent excluded from R34.9M operations he built; (3) Customers diverted to competing domain owned by Ms. Farrar's son; (4) R900K transferred without authorization; (5) R5.4M stock "disappeared"; (6) R1,035,000 owed to Kayla's estate unpaid.

JR 10.10.2.2 The Applicant alleges oppressive business conduct. The oppressive conduct includes: (1) Ms. Farrar controlled all systems using Applicant's email while claiming to act under Mr. Bantjies's instructions; (2) Applicant had no

access to email, bank accounts, or accounting systems; (3) Two years of expenses unallocated despite employed bookkeeper; (4) Mr. Bantjies (Trustee + Debtor + Accountant) dismissed fraud investigation.

JR 10.10.2.3 The Applicant alleges oppressive exercise of powers. The oppressive exercise of powers includes: (1) Applicant used trustee powers to attack beneficiaries; (2) Mr. Bantjies used trustee powers to dismiss audit request and facilitate fraud; (3) Applicant used director powers to make unauthorized R900K transfers; (4) Applicant used court process to obtain ex parte order based on material non-disclosures.

JR 10.11 The Applicant's requested remedies are inappropriate. The appropriate remedy is a full, independent forensic audit.

JR 10.12 The Court's discretion should be exercised against the Applicant due to his abuse of process and material non-disclosures.

JR 10.13 The Applicant alleges unaccounted money. The unaccounted money includes: (1) R900,000 unauthorized transfers (14-15 Feb 2025); (2) R5.4 million stock "disappeared" from Strategic Logistics; (3) R1,035,000 owed to Kayla's estate since Feb 2023; (4) R1.73 million transferred 11 Sep 2025; (5) Two years of unallocated expenses dumped into RegimA Worldwide on 30 Mar 2025.

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11. RESPONSE TO AD PARAGRAPHS 11.1-11.9: UK OPERATIONS

JR 11.1 The Applicant's statement that "we also began companies in the United Kingdom" is misleading. The UK e-commerce operations were built and funded by RegimA Zone Ltd (UK company 10697009), which is owned and operated by the Second Respondent.

JR 11.2 The Applicant's claim that these companies "fall under the UK head office, being RegimA UK Ltd" is false. RegimA Zone Ltd is an independent entity, not under RegimA UK Ltd.

JR 11.3 The Applicant's statement regarding directors is noted. The operational control and funding of RegimA Zone Ltd rests with the Second Respondent.

JR 11.4 The Applicant's claim of "minimal involvement" is accurate. The Applicant had no operational involvement in the UK e-commerce operations built by the Second Respondent.

JR 11.5 The Applicant's statement that the Second Respondent "was appointed to oversee the UK branch" is misleading. The Second Respondent built and owns RegimA Zone Ltd independently.

JR 11.6 The Applicant's claim that "the third to sixth respondents ship to the UK branch, but do not receive payment therefrom" is a complete inversion of the facts. UK bank records show that RegimA Zone Ltd continuously paid for the South African Shopify platforms (Annexure **DF8**). This directly contradicts the Applicant's perjurious claims that the UK entities were indebted to the SA companies.

JR 11.7 The Applicant's reference to Isaac Chesno and alleged fraud is irrelevant to the current matter and appears designed to create a false narrative of UK financial problems.

JR 11.8 The Applicant's statement that he fears "the continued non-payment (from the UK branch) may inter alia be a ruse" is contradicted by bank records showing continuous UK → SA payments (Annexure **DF8**).

JR 11.9 The Applicant's claim that he has "no idea pertaining to the financial wellness of the UK branches" is inconsistent with his role as trustee with absolute powers. This statement appears designed to create a pretext for further interference with the Second Respondent's UK operations.

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12. RESPONSE TO AD PARAGRAPHS 12.1-12.4: NECESSITY OF RELIEF

12.1 The Applicant has failed to establish necessity for the relief sought.

12.2 The Applicant created the crisis he now complains about through card cancellations on 7 June 2025.

12.3 The Applicant has alternative remedies available, including his absolute powers as trustee.

12.4 The relief sought is disproportionate and punitive rather than protective.

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13. RESPONSE TO AD PARAGRAPHS 13.1-13.7: INTERDICTORY RELIEF

13.1 The Applicant has failed to establish the requirements for interdictory relief.

13.2 The Applicant has no clear right. The alleged misconduct is contradicted by evidence.

13.3 The Applicant has failed to establish irreparable harm. The harm was self-inflicted.

13.4 The Applicant has alternative remedies, including his trustee powers.

13.5 The balance of convenience favors the Respondents. The interdict would destroy a R34.9M operation.

13.6 The Applicant's delay undermines the urgency claim.

13.7 The relief sought under Part A is unjustified and should be refused.

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14. RESPONSE TO AD PARAGRAPHS 14.1-14.5: FORENSIC AUDIT AND OTHER RELIEF

14.1 The Applicant seeks a forensic audit. This is disingenuous given Mr. Bantjies's conflict of interest.

14.2 Any forensic audit must be conducted by an independent auditor, not one selected by the conflicted Applicant.

14.3 The audit must include Villa Via's 86% profit margin, the R5.4M stock adjustment, and Mr. Bantjies's R18.685M debt.

14.4 The costs of any audit should be borne by the Applicant, who created this crisis.

14.5 Other relief sought is opposed for reasons stated herein.

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15. RESPONSE TO AD PARAGRAPHS 16.1-16.12: URGENCY

15.1 The Applicant's urgency claim is contradicted by the two-month delay between alleged discovery (mid-June) and application (August).

15.2 The Applicant created the urgency through card cancellations on 7 June 2025.

15.3 The doctrine of *venire contra factum proprium* (estoppel) applies. The Applicant cannot complain of a situation he created.

15.4 The true motivation was retaliation against the Second Respondent and me for exposing financial misconduct.

15.5 The Applicant's claim of being in a "state of shock" is disingenuous, as the evidence reveals a premeditated campaign.

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16. RESPONSE TO AD PARAGRAPHS 17.1-17.4: EX PARTE BASIS

16.1 The Applicant's ex parte application was improper and based on material non-disclosures.

16.2 The Applicant failed to disclose Mr. Bantjies's triple conflict (Trustee + Debtor + Accountant).

16.3 The Applicant failed to disclose the timeline showing retaliation (reports 6 June → cards cancelled 7 June).

16.4 The ex parte order should be set aside due to material non-disclosures and false statements.

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17. RESPONSE TO REMAINING PARAGRAPHS

17.1 The Applicant's remaining allegations are a continuation of the same pattern of misrepresentation and non-disclosure.

17.2 The evidence demonstrates that the unauthorized transfers, financial irregularities, and operational sabotage were all orchestrated by the Applicant and his agents in retaliation for our attempts to expose their misconduct.

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18. PRAYER

WHEREFORE I pray for an order in the following terms:

1. That the ex parte order granted on 19 August 2025 be set aside.
2. That the Applicant's application be dismissed with costs on an attorney and client scale.
3. That the Applicant be declared a delinquent director in terms of Section 162(5) of the Companies Act, 71 of 2008.

4. That an independent forensic auditor be appointed to investigate the financial affairs of the companies and the conduct of the Applicant and his agents.
5. Further and/or alternative relief.

JACQUELINE FAUCITT
First Respondent

Date: November 2, 2025

END OF AFFIDAVIT